

To: support@osf.io

Cc: contact@cos.io

Subject: Data Subject Access Request (GDPR Art. 15) and Statement of Reasons Request (DSA Art. 17) — Account 'skovnats' (deactivated as "SPAM" pre-emptively, April 2026)

Berlin, 27 May 2026

Center for Open Science, Inc.
6218 Georgia Avenue NW, Suite #1, Unit 3189
Washington, DC 20011, USA

— operator of the Open Science Framework (osf.io) —

Data subject and account identification

Field	Value
Full name	Dr. Artiom Kovnatsky
Postal address	Dahlmannstr. 17, 10629 Berlin, Germany
Correspondence email	artiom.kovnatsky@gmail.com
OSF account email	skovnats@gmail.com
ORCID	0009-0002-4357-4498
Wirtschafts-Identifikationsnummer	DE405667512
Account action	Account deactivation / flagging as "SPAM"
Approximate date of action	Early April 2026 (account flagged before any file or project was uploaded)
Support correspondence	Initial reply from "Blaine" of 10.04.2026; "Account Disabled or Falsely Flagged as SPAM" form submitted by data subject on 10.04.2026; follow-up reminder sent thereafter

Status as of this letter	No substantive response in over six weeks since the form was submitted
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Dear OSF / Center for Open Science Privacy Team,

I am the data subject and account holder identified above. I write to exercise rights granted to me under European Union law, applicable to your processing of my personal data as an EU data subject pursuant to Article 3(2)(a) GDPR.

This letter combines:

Part A — Subject access and related rights under Regulation (EU) 2016/679 (General Data Protection Regulation, "GDPR"), in particular Articles 12, 13, 14, **15**, 16, 17, 18, 19, 20, 21, **22**, 30, 33, 34, 77, and 82, read together with Recitals 60–63 and 71.

Part B — Statement of reasons and related transparency rights under Regulation (EU) 2022/2065 (Digital Services Act, "DSA"), in particular Articles **14**, 16, **17**, **20**, 21, 23 and 24(5), read together with Recitals 53–66.

The substantive subject-matter of this request is the pre-emptive deactivation of my OSF account (login: skovnats@gmail.com) in early April 2026, which occurred **prior to any upload of any file, project, registration, or preprint by me to the platform**, and which was characterised as a "SPAM" determination.

I note that the Center for Open Science has publicly described its anti-spam methodology, in academic literature based on direct statements by COS members, as relying on multiple filters considering a plethora of factors, including but not limited to "suspicious activity from a nearby IP address" (i.e. IP-neighbourhood / CIDR-range reputation signals). The present request seeks transparency on which such factors — and which other factors — were applied to my account, in accordance with my rights under Articles 15 and 22 GDPR and Article 17 DSA.

Part A — Request under Article 15 GDPR

Pursuant to Article 15(1) GDPR, I request confirmation as to whether personal data concerning me is being processed by Center for Open Science, Inc. (COS) and, where it is, **access to that personal data** together with the information specified in Article 15(1)(a)–(h) and Article 15(2):

1. **The purposes of the processing** of my personal data, including any processing connected to anti-spam, anti-abuse, integrity, account-flagging, and automated decision-making.
2. **The categories of personal data concerned**, including but not limited to:
 - account registration data (email skovnats@gmail.com, ORCID 0009-0002-4357-4498, profile information);
 - access logs (IP addresses, User-Agent strings, geolocation indicators, session timestamps);
 - any moderation, spam-filter, or trust-and-safety records associated with my account;
 - all signals, scores, classifier outputs, flags, or category labels produced by automated systems and applied to my account;
 - any third-party reputation signals or shared blocklist data consulted in respect of my account or its associated IP address(es) or CIDR range(s);
 - all internal notes, tickets, escalations, and communications relating to my account, including the initial flagging decision, the support correspondence of 10 April 2026, and the "Account Disabled or Falsely Flagged as SPAM" form I submitted.
3. **The recipients or categories of recipients** to whom my personal data have been or will be disclosed, in particular any third-party reputation, blocklist, or anti-abuse service providers.
4. Where applicable, the fact that personal data are transferred to a third country, and the **appropriate safeguards** under Articles 44–49 GDPR.
5. The **envisaged storage period** for each category of data.
6. **In relation to automated individual decision-making, including profiling, referred to in Article 22(1) and (4) GDPR** — specifically the pre-emptive flagging of my account as SPAM — I request, pursuant to Article 15(1)(h) GDPR and Article 22(3) GDPR:
 - confirmation of whether the flag was, in whole or in part, the result of automated processing;
 - **meaningful information about the logic involved**, including identification of the filter(s), heuristic(s), classifier(s), or rule(s) applied;
 - the **input features** considered and the **output values** produced for my account, with particular reference to:
 - any IP-address or CIDR-neighbourhood reputation signal applied;

- any email-address reputation signal applied;
- any ORCID or external-identifier reputation signal applied;
- any temporal or behavioural pattern signal applied (noting that my account had no platform activity at the time of flagging);
- the **significance and envisaged consequences** of such processing for me;
- the **human-review records**, if any, that preceded the flag and any subsequent review;
- confirmation that the safeguards required by Article 22(3) GDPR were applied.

7. **Where the personal data are not collected from me directly** (e.g. external blocklist signals, third-party abuse-database results), any available information as to **the source** (Article 15(1)(g) GDPR).

The response shall be provided in commonly used electronic form (Article 15(3) GDPR), in English, free of charge (Article 12(5) GDPR), and **within one month** of receipt (Article 12(3) GDPR), i.e. by **27 June 2026**.

Personal data within the meaning of Article 4(1) GDPR includes **pseudonymised data** (Recital 26 GDPR); I expressly include pseudonymised records within the scope of this request.

Part B — Request under Article 17 DSA

OSF, as operated by the Center for Open Science, is an "online platform" within the meaning of Article 3(i) DSA, allowing recipients of the service to store and disseminate content (preprints, projects, registrations) to the public at their request. As an EU recipient of the service whose access has been restricted, I am entitled to the protections of Articles 14, 17, 20 and 21 DSA.

The deactivation of my account constitutes a "suspension of the provision of the service" within the meaning of Article 17(1)(b) DSA (suspension of the recipient's account is expressly covered under Art. 17(1)(b)).

Pursuant to Articles 17(1) and 17(3)(a)–(f) DSA, I request a **clear and specific statement of reasons**, in writing, containing in particular:

1. **The facts and circumstances** relied on in taking the decision (Art. 17(3)(b) DSA), given that my account had no content, no platform interactions, and no uploaded material at the time of the decision.

2. **Information on the use of automated means** in taking the decision (Art. 17(3)(c) DSA), and identification of the filter(s) or signal(s) that triggered the action.
3. **A reference to the legal ground or contractual ground** relied on (Art. 17(3)(d)–(e) DSA), in particular the specific provision of the OSF Terms of Use invoked.
4. **Clear and user-friendly information on redress possibilities** under Article 20 DSA (internal complaint-handling) and Article 21 DSA (out-of-court dispute settlement).
5. **The Permanent Unique Identifier (PUID)** of the statement of reasons assigned by your systems, and a reference to its entry in the **DSA Transparency Database** maintained by the European Commission under Article 24(5) DSA, if applicable.

In addition I rely on:

- **Article 14(4) DSA** — your obligation to apply and enforce your terms of service "in a diligent, objective and proportionate manner";
 - **Article 20 DSA** — I hereby formally **submit a complaint** under Article 20 against the deactivation;
 - **Article 21 DSA** — my right to refer the dispute to a certified out-of-court dispute settlement body;
 - **Article 23 DSA** — to the extent that anti-abuse measures may have been applied disproportionately.
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Specific items requested

- (a) The internal record of the action(s) applied to the account "skovnats@gmail.com" in March–April 2026, with timestamps (UTC), action type, scope, and the unique identifier of each action.
- (b) The identity, version, and operating description of any filter(s), heuristic(s), or rule(s) whose output contributed to the action, together with the input feature categories considered and the output values produced for my account.
- (c) Any IP-address or CIDR-neighbourhood reputation signal consulted in respect of my account, including the source and the value returned.
- (d) Any email-address reputation signal consulted in respect of skovnats@gmail.com.
- (e) The records of human review, if any, that preceded the deactivation and any subsequent review.

(f) The complete record of my "Account Disabled or Falsely Flagged as SPAM" form submission of 10 April 2026 and any internal notes generated in respect of it.

(g) The Statement of Reasons that COS issued, or should have issued, under Article 17 DSA in respect of the deactivation, and its PUID.

Format, deadline, and escalation

I request response:

- in commonly used electronic form;
- in English;
- free of charge (Article 12(5) GDPR);
- **within one month**, i.e. by **27 June 2026** (Article 12(3) GDPR); the statement of reasons under Article 17 DSA being due without undue delay.

In the event of non-response, incomplete response, or refusal, I reserve the right to:

- lodge a complaint with the **Berliner Beauftragte für Datenschutz und Informationsfreiheit (BlnBDI)** under Article 77 GDPR;
- lodge a complaint with the **Digital Services Coordinator at the Bundesnetzagentur** (dsc.bund.de) under Article 53 DSA;
- pursue judicial remedies under Articles 77–79 GDPR and Articles 54 and 86 DSA, including the right to material and non-material damages under Article 82 GDPR.

Please acknowledge receipt of this letter and assign it a reference number. The one-month period under Article 12(3) GDPR begins on the date of your receipt of this email.

To verify identity, I am the account holder of skovnats@gmail.com and am willing to provide reasonable proof on request, consistent with the data-minimisation principle of Article 5(1)(c) GDPR.

Yours sincerely,

Dr. Artiom Kovnatsky

Dahlmannstr. 17, 10629 Berlin

artiom.kovnatsky@gmail.com

ORCID: 0009-0002-4357-4498

Enclosures / referenced records:

1. OSF Support email of 10.04.2026 ("Blaine").
2. My response of 10.04.2026 with completed "Account Disabled or Falsely Flagged as SPAM" form (screenshots).
3. Subsequent follow-up reminder (date as per Sent folder).